

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS LLC ET AL.,
RESPONDENTS.

**COMPLAINANT TPG PRESSURE, INC.'S
EXCEPTIONS TO THE INITIAL DECISION**

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Pursuant to 46 C.F.R. § 502.227, Complainant TPG Pressure, Inc. (“TPG” or “Complainant”), by its respective undersigned counsel, and in compliance with the Revised Scheduling Order, hereby submits its Exceptions to the Initial Decision entered on September 10, 2024, as follows:

SUMMARY OF ARGUMENT

The Initial Decision (“ID”) errs in several respects. First, the Administrative Law Judge (“ALJ”) failed to apply the correct burden-shifting framework in determining demurrage charges. That is, once TPG made a *prima facie* case showing the charges were unreasonable—which it did—the burden shifted to Respondents to “come forward with some proof of their propriety.” *Gruenberg-Reisner v. Overseas Moving Specialists, Inc. d/b/a International Sea & Air Shipping*, Decision on Remand, 2017 WL 2241031, at *19 (May 17, 2017). Provided Respondents met that burden—they did not—then the burden would have shifted back to TPG, as Complainant, who would bear the “ultimate burden” of unreasonableness.

Second, because of the failure to apply the correct burden-shifting framework, the ALJ incorrectly concluded that TPG has not met its burden of proof to show that a substantial portion of Respondents’ demurrage charges are unreasonable. In that vein, the ALJ (i) failed to consider that Respondents’ invoicing is insufficient and lacks credibility; (ii) erred in finding that Respondents “reasonably” conveyed information regarding congestion and delays; (iii) erred in finding that not all demurrage charges were avoidable; and (iv) failed to consider that Respondents’ conduct was less efficient than that of other carriers.

The ALJ also incorrectly concluded that TPG could not seek reparations for pass-through charges from the carrier or terminal. Well-established precedent indicates that a complainant only has standing to challenge charges from parties it paid directly. Accordingly, TPG may only

challenge those charges through Respondents. The burden is on Respondents to seek indemnification from those third parties that it paid.

Fourth, regarding the order on reparations, the ALJ failed to consider TPG's demand that Respondents cease and desist their efforts to collect on \$390,336.80 to which Respondents are not entitled based upon their improper conduct.

In sum, based on the ALJ's findings [*see* Exhibit A],¹ the total amount of demurrage charges paid by Respondents to carriers is \$427,256.39. The difference between Respondents' claim for unpaid amounts as found by the ALJ, and the amount of demurrage that should have been found to be unjust and unreasonable, is \$36,919.59. Accordingly, TPG is entitled to reparations in the amount of the difference, which is \$36,919.59.

STANDARD OF REVIEW

The Administrative Procedure Act requires the ID be supported with reliable, probative, and substantive evidence. *See* 5 U.S.C. § 556(d). In reviewing the ID, the Commission has all the powers which it would have, performing a *de novo* review of the findings of the ALJ. 46 C.F.R. § 502.227(a)(6).

The Commission reviews the ID as "it would have in making the initial decision" itself. 46 C.F.R. § 502.227(a)(6). The Commission may adopt the ALJ's findings of fact and law where "they are well-reasoned and supported by evidence in the record." *United Logistics (LAX) Inc. -- Possible Violations of Sections 10(a)(1) and 10(b)(2)(A)*, Dkt. 13-01, 2014 WL 5316339, at *1 (FMC Feb. 6, 2014).

¹ Exhibit A is a copy of the chart from the ID on pages 17-22 with the totals at the bottom of the chart.

ARGUMENT

I. The ALJ Failed to Apply the Correct Burden-Shifting Framework Regarding Demurrage Charges

The Shipping Act provides that a “common carrier . . . may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). “Just and reasonable” signifies that a “regulation or practice must be tailored to meet its intended purpose, that is, ‘fit and appropriate for the end in view.’” Final Rule: Interpretive Rule on Demurrage and Detention Under the Shipping Act, 85 Fed. Reg. 29,638, 29,651 (May 18, 2020) (quoting 46 U.S.C. § 41102(c)); *see also Distrib. Servs., Ltd. v. Transpacific Freight Conf. of Japan*, 24 S.R.R. 714, 722, 1988 WL 340659, at *6 (FMC 1988) (citing Black’s Law Dictionary, Fourth Edition). The Commission has adopted a burden-shifting framework to analyze the effects of a practice as compared to a proffered “worthy objective[.]” *Distrib. Servs., Ltd.*, 1988 WL 340659, at *7. As a first step, a Complainant must show substantial harm and may meet this prima facie burden either by showing “actual harm or harm likely to be caused.” *River Parishes Co. v. Ormet Primary Aluminum Corp.*, 28 S.R.R. 751, 1999 WL 125991, at *25 (FMC 1999) (citation omitted). If the Complainant makes its prima facie case, the burden of production then shifts to the Respondent to produce evidence rebutting that case. *See Gruenberg-Reisner*, 2017 WL 2241031, at *9 (citing *Petition of South Carolina Ports Authority for Declaratory Order*, 27 S.R.R. 1137, 1161 (FMC 1997)); *see also Steadman v. SEC*, 450 U.S. 91, 101 n.16 (1981) (“Where a party having the burden of proceeding has come forward with a prima facie or substantial case, he will prevail unless his evidence is discredited or rebutted”).

If the Respondent meets its burden, the burden then shifts back to the Complainant, who bears the ultimate burden of proof. *See, e.g., Canaveral Port Authority - Possible Violations of*

Section 10(b)(10), Unreasonable Refusal to Deal or Negotiate, 2003 WL 723336, at *13 (Feb. 24, 2003). As an example, if the Complainant identifies “less intrusive methods” to accomplish the objective, then the conduct is “excessive” and “unreasonable,” and it violates the Shipping Act. *Distrib. Servs.*, 1988 WL 340659, at *7.²

Here, the ALJ erred in failing to apply this applicable law. TPG met its initial burden to make a prima facie case that the charges were unreasonable. In particular, TPG produced evidence that there was a lack of appointments available during the relevant period of time. [ID at 8, 40]. The ALJ made a specific finding that the record reflected Respondents cited to lack of appointments as a reason for delays. This is uncontested evidence. In *Hapag Lloyd*, the ALJ has held that the practice of charging detention is unreasonable when there is evidence that sufficient appointments were not available. *Hapag-lloyd, A.G. and Hapag-Lloyd (America) LLC-possible Violations of 46 U.S.C. § 41102(c)*, 2022 WL 1239377, at *30. The CALJ explained that “[t]his policy and practice is unreasonable because no amount of detention could have incentivized the return of the containers on those fourteen days.” *Id.* Similarly, here, lack of appointments would render demurrage charges unreasonable because no amount of demurrage could have incentivized the pick of up of containers.

Thus, Respondents had burden to come forward with evidence to show that the demurrage charges have not been associated with lack of appointments, which they simply did not do. The burden is not on TPG to provide evidence that delays in picking up containers were the fault of Respondents. Because Respondent Epic, as NVOCC, had direct relationship with carriers,

² For instance, in the Decision on Remand in *Gruenberg-Reisner v. Overseas Moving Specialists, Inc. d/b/a International Sea & Air Shipping*, 2017 WL 2241031, at *22, it was determined that the Complainant met its burden to demonstrate fuel and handling charges were unreasonable. To rebut this contention, the Respondent did not produce separate invoices for those charges but rather submitted an affidavit that those charges were just and reasonable. The Small Claims Officer found such evidence insufficient to rebut the Complainant’s submission.

terminals, trucking companies, and other service providers, TPG is at the mercy of Respondents to provide evidence that charges imposed by such service providers were just and reasonable as required by the Shipping Act. Accordingly, Respondents failed to meet their burden to provide sufficient justification for the charges, and the ALJ should have found for TPG in total on the unreasonable detention and demurrage charges.

II. The ALJ Incorrectly Concluded That TPG Has Not Met its Burden to Demonstrate the Unreasonableness of Demurrage Charges

TPG came forward with the substantial, reliable evidence that it had to show the unreasonableness of the demurrage charges. Once TPG met that burden, Respondents had to come forward with their own “proof of propriety” of those charges. *C.H. Leavell & Co. v. Hellenic Lines, Ltd.*, 13 F.M.C. 76, 89 (FMC 1969) [Brief at 23; Reply at 13]. Respondents failed to do so, and thus they failed to meet their burden. The “ultimate burden” did not shift back to TPG based on Respondents’ failures.

A. ALJ Failed to Determine Respondents’ Documentary Evidence Was Insufficient and Lacked Credibility

As TPG stated in its briefs, Respondents failed to provide documentation that would have demonstrated whether the charges were reasonable. [Brief at 23; Reply at 12-15]. A simple proof of payment receipt is insufficient to determine whether a charge is reasonable. When analyzing the supporting documentation provided by Respondents, the ID concludes that “third-party invoices or credit card receipts are sufficient to show that Respondents paid demurrage charges for TPG’s containers” [ID at 42]. However, whether Respondents *paid* demurrage charges is not the issue. The central question is whether the charges were unjust and unreasonable—not whether the charges were paid. Pursuant to 46 CFR § 545.5, the ALJ was required to assess the reasonableness

of detention and demurrage charges based on the specific factors in the rule. That did not occur here.

Respondents' explanations as to additional charges confirms TPG should not have had to pay certain categories of charges, such as lack of appointments, congestion, and chassis shortages. TPG meets the standard under 46 CFR § 545.4, and thus should not have had to pay for these categories. Specific to the issue of purported lack of appointments, TPG addressed this issue in its Opening Brief and Reply Brief. [Brief at 19 n.46; Reply at 24 n.4]. Commissioners Bentzel and Vekich, commenting on the Commission's approval of a settlement agreement with Hapag-Lloyd, stated:

We believe that under 46 U.S.C. § 41107(a), each day of a continuing violation constitutes a separate violation. As determined by the ALJ, Hapag-Lloyd's unjust and unreasonable practice was to assess detention and demurrage when there were insufficient appointments available. Accordingly, each day that this practice was in place should constitute a separate violation.

Statement by Commissioners Carl W. Bentzel and Max Vekich on FMC's approval of the \$2 million Settlement Agreement with Hapag-Lloyd, (June 10, 2022), available at <https://www.fmc.gov/statement-by-commissioners-carl-w-bentzel-and-max-vekich-on-fmcs-approval-of-the-2-million-settlement-agreement-with-hapag-lloyd/>; *see also Hapag-Lloyd*, 2022 WL 1239377, at *30. Accordingly, it is the express opinion of the Commission that assessing detention and demurrage charges for insufficient appointments is an unjust and unreasonable practice. Thus, TPG rightfully did not accept this excuse as a valid reason for assessing charges.

As a further matter, the ALJ disregarded evidence that Respondents had additional evidence, such as carrier invoices and screen shots that would have shown the level of detail requested by TPG to support its claims, yet that Respondents failed to provide to TPG in the first

instance or in this proceeding. Respondents failed to provide evidence with sufficient detail. [ID at 48].

B. ALJ Erred in Finding Respondents “Reasonably” Conveyed Information Regarding Congestion and Delays

Respondents failed to present evidence showing they sufficiently and regularly communicated issues regarding congestion or delays, save for a single email stating they would “communicate and address the situations as they arise.” [ID at 42; Capp10557]. One email over the course of months and years of dealings is patently insufficient. Therefore, the ALJ’s decision on this issue is incorrect.

The ALJ also erred in concluding that “TPG has not provided evidence that delays in picking up containers were the fault of Respondents and such fault will not be presumed merely from the existence of demurrage charges.” [ID at 41]. In fact, TPG did present evidence that there were lack of appointments, which supports TPG’s prima facie case that the charges were unreasonable. Respondents did not bring forward evidence to the contrary. The ALJ found that the appointments were not available, which should have warranted a finding in TPG’s favor. TPG has no obligation to directly attribute fault to Respondents, as it has no ability to join third parties with which TPG did not contract to this proceeding. TPG’s sole remedy is to seek relief from Respondents, as well-established precedent provides. *See, e.g., Gov’t. of Guam v. Sea-Land Serv., Inc.*, 29 S.R.R. 894, 902, 2002 FMC LEXIS 16, *4 (ALJ 2002), *admin. final*, 2002 FMC LEXIS 25 (FMC 2002).

C. ALJ Erred in Concluding That a Vast Majority of the Claimed Demurrage Charges Were Not Avoidable

The law states that excessive charges are inherently unreasonable and require proof of propriety. *See C.H. Leavell & Co. v. Hellenic Lines, Ltd.*, 13 F.M.C. 76, 89 (FMC 1969). TPG had

no control over the secondary providers or containers. Simply finding that TPG has not presented evidence runs afoul of the incentive principle of 46 C.F.R. § 545.4; the NVOCC must be held accountable to substantiate that its charges are just and reasonable. Placing the burden on TPG here enables Respondents to freely engage in unjust and unreasonable practices as there will be no consequence.

More specifically, the ALJ erred in finding a violation of the Shipping Act and entitlement to reparations or to a cease and desist order only for improper markups, yet no violation for unreasonable pass-through charges from the carrier or terminal. [ID at 54]. TPG is entitled to full reparations in the entirety of the amounts paid—the pass-through charges and the improper markups. TPG has no standing to challenge charges from parties it did not pay directly; only Respondents have standing to do that as the direct purchasers.

Under Commission caselaw, parties suing for alleged overcharges can only recover reparations from the carrier if they actually paid the carrier or received an assignment from the direct purchaser. *Gov't. of Guam v. Sea-Land Serv., Inc.*, 29 S.R.R. 894, 902, 2002 FMC LEXIS 16, *4 (ALJ 2002), admin. final, 2002 FMC LEXIS 25 (FMC 2002). Tellingly, invoices issued to Epic from the carrier included language that would allow Epic—and only Epic—to dispute the charges. [Rapp383]. Respondents' recourse would have been to seek indemnification or contribution from the carrier(s).

In the case of *In re Vehicle Carrier Services*, 2019 WL 5419475 (Oct. 21, 2019), the Commission stated that a respondent cannot rely on a claimant pass-on theory to avoid liability for reparations. *Id.* at *6. This is similar to the direct purchaser rule, which provides that only the party that actually paid the carrier can sue for reparations for an overcharge. Indirect purchasers, such as TPG in this case, cannot seek reparations from carriers it did not pay directly. By the same

token, the Commission's decision provides that whether the respondent passed through those charges to a claimant is not a valid defense to an overcharge claim. *Id.* That is precisely the case here.

The issue is not that simply markups are unreasonable and improper, but rather that the totality of the charges is unreasonable—whether those are pass-through or direct charges. Accordingly, the ALJ erred in failing to award full reparations for detention and demurrage, including the pass-through charges from carriers or terminals.

D. ALJ Failed to Consider That Respondents' Conduct Was Less Efficient Than That of Other Carriers

TPG asserted in its briefing that another service provider was able to pull containers more quickly than Respondents, and this is another indicium of Respondents' unjust and unreasonable practices. [Brief at 19; Reply at 23]. The ALJ incorrectly disregarded this evidence as proof of Respondents' unreasonable practices. [ID at 44]. In fact, this conclusion directly contradicts the case of *C.H. Leavell & Co.*, 13 F.M.C. at 89, which the ALJ quoted in the ID, [ID at 39], which states:

Therefore, we remand the issue of whether Respondent's assessment of these charges was a just and reasonable practice. On remand, we recommend that the SCO request the invoices again. The invoices, however, are not the only indication of whether the charges were reasonable. *See id.* If the NVOCC is unable to produce the invoices, **we recommend that the SCO look at other factors such as whether the charges were similar to those assessed by other NVOCCs.**

(Emphasis added). TPG was well within its right to introduce this evidence, especially in the absence of sufficient invoicing by Respondents. The ALJ should have considered this as a factor, as the Commission in *C.H. Leavell & Co.* provides. Because the ALJ failed to consider the other service providers, the ID errs in ruling that Respondents were not liable for delays in picking up containers. [ID at 41].

III. The ID Erred in Denying TPG’s Demand That Respondents Cease and Desist Efforts to Collect Unlawful Amounts

In its Complaint and Response to Surreply, TPG requested a cease-and-desist order to prevent Respondents’ collections of unjust and unreasonable charges. [Surreply at 7]. Under Commission precedent, “[t]he imposition of a cease and desist order normally requires a showing that unlawful conduct is ongoing or likely to resume.” *Maier Terminals, LLC v. Port Authority of New York and New Jersey*, Docket No. 08-03, 32 S.R.R. 1185, 1190 n.8 (FMC Jan. 31, 2013) (citations omitted) [Reply at 31]. Clearly, continuing collection of unjust and unreasonable charges violates the Shipping Act. In light of the above, a cease-and-desist order is a proper remedy to prevent the collection of unreasonable charges.

TPG has met its burden of establishing a total amount of \$427,256.39 in damages for Respondents’ unlawful practices in collecting unreasonable demurrage charges from TPG. The ALJ found that TPG established grounds for violations of the Shipping Act based on the relevant factors. Importantly, the ID concludes that Respondents’ “coercive collection practices were part of their written policies and procedures, which is sufficient to find that they were a practice occurring on a normal, customary, and continuous basis.” [ID at 45]. This alone meets the standard that Respondents’ unlawful conduct is “ongoing” or “likely to resume,” thus warranting entry of a cease-and-desist order.

CONCLUSION

Based on the foregoing exceptions, and for the reasons stated in TPG’s Opening Brief, Reply Brief, and Response to Surreply, TPG is entitled to an award of reparations in its favor in the amount of \$427,256.39, plus interests, costs, an attorneys’ fees, in addition to an Order (1) compelling Respondents to cease and desist from violations of the Shipping Act, and (2) putting in place lawful and reasonable practices to preclude Respondents from demanding that TPG pay

unsubstantiated and unlawful charges. Accordingly, the ALJ should have found that TPG is entitled to reparations in the amount of \$36,919.59.

Dated: October 4, 2024

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on October 4, 2024, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Initial Order of December 6, 2022, as follows:

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EXHIBIT A

Container Number	Demurrage Invoices to TPG	Demurrage Paid by Respondents	Markup	TPG Invoice Number	Cite
TCNU6161224	\$325.50	\$0.00	\$325.50	7203093 00	CApp 4650
HLXU6589482	\$546.00	\$390.00	\$156.00	7203102 00	CApp 4159; RApp 382
UASU1052116	\$546.00	\$520.00	\$26.00	7203104 00	CApp 4162; RApp 390
HLBU1567415	\$546.00	\$520.00	\$26.00	7203105 00	CApp 5552; RApp 393
UETU5817572	\$1,060.50	\$1,010.00	\$50.50	7203107 00	CApp 5555; RApp 398
HLBU2073818	\$955.50	\$0.00	\$955.50	7203113 00	CApp 4653
TEMU7560743	\$672.00	\$640.00	\$32.00	7203114 01	CApp 3491; CApp 3498
TGHU8918221	\$672.00	\$640.00	\$32.00	7203115 01	CApp 3499; CApp 3498
TCLU8216822	\$682.50	\$650.00	\$32.50	7203118 00	CApp 5775; RApp 425
FFAU3390796	\$2,063.62	\$1,985.00	\$78.62	7203132 00, 7203132 01	CApp 3725; CApp 9955; CApp 3727; CApp 3732; CApp 9963
CSNU6785143	\$2,063.52	\$1,304.91	\$758.61	7203133 00, 7203133 01	CApp 8011; CApp 9109; CApp 9965; CApp 9968
CSLU6309509	\$1,650.94	\$858.00	\$792.94	7203134 00	CApp 7710; CApp 5032
TRHU5455660	\$1,650.94	\$1,572.32	\$78.62	7203135 00	CApp 3887; RApp 439; RApp 440
TRHU7261535	\$1,650.94	\$1,572.32	\$78.62	7203138 00	CApp 4053; CApp 4055; CApp 4056
BEAU5769741	\$1,963.00	\$858.00	\$1,105.00	7203139 00	CApp 5561; CApp 5032
BEAU5787909	\$2,090.24	\$1,572.32	\$517.92	7203140 00	CApp 5562-63; RApp 460-1
TGBU8721729	\$1,650.94	\$858.00	\$792.94	7203141 00	CApp 5565; CApp 5032
FSCU7267786	\$1,616.00	\$858.00	\$758.00	7203219 00	CApp 5568; CApp 5032
TRHU5347856	\$5,468.21	\$0.00	\$5,468.21	7203220 00	CApp 5812
BEAU6227719	\$5,468.21	\$5,207.82	\$260.39	7203222 00	CApp 7469; CApp 8294
OOCU8978862	\$5,468.21	\$5,207.82	\$260.39	7203224 00	CApp 5814; CApp 5823
TCNU5013500	\$5,468.21	\$5,207.82	\$260.39	7203225 00	CApp 3895; CApp 3899
TRHU7270917	\$5,468.21	\$0.00	\$5,468.21	7203227 00	CApp 4210
BEAU5766085	\$5,468.17	\$5,207.82	\$260.35	7203228 00	CApp 3900; CApp 3902
CSNU6601457	\$5,468.21	\$0.00	\$5,468.21	7203229 00	CApp 5827
DFSU7463187	\$5,467.35	\$5,207.82	\$259.53	7203230 00	CApp 5034; CApp 5042
CSNU7886415	\$5,468.21	\$5,207.82	\$260.39	7203231 00	CApp 4663; CApp 4665
TGBU4774090	\$5,468.21	\$5,207.82	\$260.39	7203232 00	CApp 6942; CApp 7962
GCXU5367877	\$4,331.25	\$4,125.00	\$206.25	7203243 00,	CApp 5149; CApp 4998;
				7203243 01	CApp 3905
CMAU6927875	\$4,567.50	\$4,125.00	\$442.50	7203244 00	CApp 5043; CApp 3905
CMAU6828996	\$4,567.50	\$4,350.00	\$217.50	7203245 00	CApp 3295; CApp 4761
SEKU5605343	\$4,961.25	\$4,800.00	\$161.25	7203246 00	CApp 3296; CApp 4761
BEAU6100339	\$4,567.50	\$4,350.00	\$217.50	7203247 00	CApp 3293; CApp 5160
BEAU6256110	\$4,567.50	\$4,350.00	\$217.50	7203248 00	CApp 3300; CApp 4761
TRHU7860451	\$5,276.25	\$5,025.00	\$251.25	7203249 00	CApp 3917; CApp 4761
FFAU4263522	\$4,331.25	\$4,125.00	\$206.25	7203250 00	CApp 3298; CApp 4761
CAAU5027430	\$5,040.00	\$4,800.00	\$240.00	7203254 00	CApp 3297; CApp 4761
TRHU8260718	\$5,276.25	\$5,025.00	\$251.25	7203255 00	CApp 4760; CApp 5115
BSIU8068597	\$5,040.00	\$4,800.00	\$240.00	7203256 00	CApp 5050; CApp 3905
HLXU8270405	\$2,916.38	\$2,810.00	\$106.38	7203381 00	CApp 5055; CApp 3934; CApp 3937; CApp 3943
				7203384 00	CApp 3932; CApp 3934; CApp 3937; CApp 3943
UACU5373513	\$2,194.50	\$2,090.00	\$104.50	7203384 00	CApp 3937; CApp 3943
UACU5985566	\$871.50	\$830.00	\$41.50	7203385 00	CApp 4672; CApp 4477
UACU5522849	\$3,202.50	\$2,270.00	\$932.50	7203386 00	CApp 3949; CApp 3934; CApp 3937; CApp 3943
TCLU5095476	\$409.50	\$390.00	\$19.50	7203389 00	CApp 3967; CApp 3943
AMFU8822403	\$1,627.50	\$1,550.00	\$77.50	7203393 00	CApp 5165; CApp 4477
HLBU1290315	\$1,161.50	\$1,010.00	\$151.50	7203394 00	CApp 4677; CApp 4477-80
BMOU4426700	\$1,816.50	\$1,730.00	\$86.50	7203395 00	CApp 4816; CApp 4477-78
DFSU7048925	\$304.50	\$160.00	\$144.50	7203397 00	CApp 4827-28; CApp 4829
HLBU3326715	\$546.00	\$520.00	\$26.00	7203398 00	CApp 4469; CApp 4470
FCIU7469643	\$871.50	\$830.00	\$41.50	7203399 00	CApp 4476; CApp 4678

Container Number	Demurrage Invoices to TPG	Demurrage Paid by Respondents	Markup	TPG Invoice Number	Cite
Not on invoice	\$1,097.25	\$0.00	\$1,097.25	7203601 00	CApp 5792
ONEU0280464	\$420.00	\$0.00	\$420.00	7203603 00	CApp 5178
APHU7297242	\$315.00	\$300.00	\$15.00	7204002 00	CApp 5123; CApp 5130-31
TRHU8556187	\$2,100.00	\$2,000.00	\$100.00	7204003 00	CApp 6040; CApp 4842-43
BEAU6082512	\$2,402.90	\$2,000.00	\$402.90	7204004 00	CApp 4395; CApp 4842-43
TLU7764959	\$2,402.40	\$2,000.00	\$402.40	7204005 00	CApp 4400; CApp 4842
BEAU4118961	\$2,100.00	\$2,000.00	\$100.00	7204006 00	CApp 4838; CApp 4842-43
BMOU6071003	\$2,100.00	\$2,000.00	\$100.00	7204007 00	CApp 4844; CApp 4842-43
SEGU4745156	\$2,100.00	\$2,000.00	\$100.00	7204012 00	CApp 4183; CApp 4842-43
TGBU6810452	\$2,100.00	\$2,000.00	\$100.00	7204015 00	CApp 4848; CApp 4842-43
BHCU5024009	\$2,100.00	\$2,000.00	\$100.00	7204018 00	CApp 4853; CApp 4842-43
CSNU7421969	\$535.00	\$500.00	\$35.00	7204071 01	CApp 4235; CApp 4266
CSNU8495694	\$660.00	\$625.00	\$35.00	7204072 01	CApp 4241; CApp 4266
FFAU3560491	\$535.00		\$35.00	7204076 01	CApp 3830; CApp 4266
FSCU8591660	\$660.00	\$625.00	\$35.00	7204077 01	CApp 4247; CApp 4266
CSNU6030131	\$660.00	\$625.00	\$35.00	7204078 01	CApp 4252; CApp 4266
TRHU4378071	\$410.00	\$375.00	\$35.00	7204082 01	CApp 4256; CApp 4266
OOCU8283736	\$660.00	\$625.00	\$35.00	7204083 01	CApp 4261; CApp 4266
TRHU4446031	\$410.00	\$375.00	\$35.00	7204084 01	CApp 3835; CApp 4266
BSIU9546094	\$305.55	\$300.00	\$5.55	7204088 00	CApp 4219; CApp 5130-31
FFAU3996905	\$105.00	\$100.00	\$5.00	7204089 00	CApp 8286; CApp 5131
TLU5008280	\$326.55	\$100.00	\$226.55	7204179 00	CApp 4223; CApp 5131
APHU7024227	\$210.00	\$200.00	\$10.00	7204181 00	CApp 5199; CApp 5130
CSNU6521876	\$525.00	\$500.00	\$25.00	7204903 00	CApp 4864; CApp 4870
Not on invoice	\$735.00	\$0.00	\$735.00	7204907 01	CApp 4871
TGHU6652106	\$735.00	\$700.00	\$35.00	7204910 00	CApp 4879; CApp 4870
OOLU 9209663	\$525.00	\$500.00	\$25.00	7204911 00	CApp 4885; RApp 698; RApp 695-96
TGBU4912199	\$2,633.65	\$2,508.24	\$125.41	7204937 00	CApp 4893; CApp 4899
CMAU5640427	\$105.00	\$0.00	\$105.00	7205135 00	CApp 4231
TCNU5037055	\$105.00	\$100.00	\$5.00	7205142 00	CApp 5138; CApp 5142
TLU4292191	\$105.00	\$100.00	\$5.00	7205685 00	CApp 5069; CApp 5131
TCNU3505291	\$15,504.91	\$14,766.58	\$738.33	7205689 00	CApp 3507; CApp 3510
TCNU3605984	\$655.14	\$623.94	\$31.20	7209510 00	CApp 4120; RApp 761
CSNU6248057	\$105.00	\$100.00	\$5.00	7209832 00	CApp 3700; RApp 769
CMAU5798794	\$656.78	\$623.94	\$32.84	7210043 00	CApp 3848; CApp 8921
CMAU7461396	\$1,263.15	\$1,200.00	\$63.15	7210609 00	CApp 3853; CApp 3854
TRHU5885300	\$1,282.98	\$0.00	\$1,282.98	7210826 01, 7210830 01	CApp 3514; CApp 3517
CMAU4728405	\$1,196.63	\$200.00	\$996.63	7210839 00, 7210839 01	CApp 7282; CApp 3519; CApp 7284
Not on invoice	\$524.04	\$0.00	\$524.04	7210840 01	CApp 3522
CMAU5880372	\$420.00	\$400.00	\$20.00	7210843 00	CApp 4507-09
Not on invoice	\$524.04	\$0.00	\$524.04	7210843 01	CApp 3524
Not on invoice	\$758.94	\$0.00	\$758.94	7210850 01	CApp 3527
SEGU5315988	\$210.00	\$200.00	\$10.00	7210852 00	CApp 5429; CApp 5433
CMAU6647560	\$655.14	\$623.94	\$31.20	7210929 00	CApp 8965-66; CApp 5441
CMAU7631764	\$655.14	\$623.94	\$31.20	7210930 00	CApp 3718; CApp 3721
TCNU6497230	\$11,137.33	\$10,606.98	\$530.35	7210935 00	CApp 4513; CApp 4517-18
CMAU4503435	\$11,137.33	\$10,606.98	\$530.35	7210937 00	CApp 8866; CApp 4527-28
TCLU5749812	\$157.50	\$150.00	\$7.50	7210950 00	CApp 7254; RApp 914
Not on invoice	\$610.53	\$0.00	\$610.53	7210958 00	CApp 6177
TCNU582639	\$315.00	\$300.00	\$15.00	7211369 00	CApp 4564; RApp 1044
BEAU4020933	\$2,105.26	\$2,000.00	\$105.26	7211527 00	CApp 3630; CApp 3400
FCIU9205681	\$1,578.94	\$1,500.00	\$78.94	7211584 00	CApp 3634; CApp 3640
TCNU7501313	\$1,263.15	\$1,200.00	\$63.15	7211743 00	CApp 3859; CApp 3854
Not on invoice	\$1,263.15		\$1,263.15	7211745 00	CApp 3863
SEKU5488632	\$656.78	\$623.94	\$32.84	7211789 00	CApp 3651; CApp 9398
CSNU7465653	\$5,469.26	\$5,207.82	\$261.44	7212031 00	CApp 5447; RApp 988
SEKU6018865	\$1,747.03	\$1,663.84	\$83.19	7212040 00	CApp 3372; CApp 3376
CAIU9216570	\$3,800.00	\$500.00	\$3,300.00	7212049 00, 7212049 01	CApp 3653; CApp 3530; CApp 3435
APHU6774762	\$2,526.32	\$100.00	\$2,426.32	7212057 00, 7212057 01	CApp 3536; CApp 3438-39
TCLU6596256	\$948.69	\$500.00	\$448.69	7212063 00, 7212063 01, 7212063 02	CApp 3442; CApp 3434; CApp 3540; RApp 360
BEAU4117604	\$3,684.21	\$1,500.00	\$2,184.21	7212064 00	CApp 3446; CApp 3447-38
TCLU8158650	\$2,747.36	\$500.00	\$2,247.36	7212067 00, 7212067 01	CApp 3451; CApp 3544; CApp 3435

Container Number	Demurrage Invoices to TPG	Demurrage Paid by Respondents	Markup	TPG Invoice Number	Cite
SEGU5340147	\$525.00	\$500.00	\$25.00	7212068 00	CApp 3455; CApp 5848
CMAU6430003	\$2,526.32	\$2,400.00	\$126.32	7212114 00	CApp 6604; CApp 6607-08
BEAU4103914	\$656.78	\$623.94	\$32.84	7212624 00	CApp 3460; CApp 8681
CMAU6332100	\$656.78	\$623.94	\$32.84	7212625 00	CApp 3463; CApp 3465
BMOU6093070	\$656.78	\$623.94	\$32.84	7212627 00	CApp 3467; CApp 3469
TEMU7577725	\$656.78	\$623.94	\$32.84	7212628 00	CApp 3471; CApp 9641
SEGU6306260	\$656.78	\$623.94	\$32.84	7212629 00	CApp 3474; CApp 9390
SEGU4496290	\$656.78	\$623.94	\$32.84	7212632 00	CApp 3476; CApp 9360
SEKU5586198	\$3,283.90	\$623.94	\$2,659.96	7212635 00, 7212647 00	CApp 3478-79; CApp 3485
TLU5002105	\$2,627.12	\$2,495.76	\$131.36	7212640 00	CApp 3481; CApp 9785-86
TCHU2242903	\$2,627.12	\$0.00	\$2,627.12	7212644 00	CApp 9489
CMAU6861700	\$2,627.12	\$2,495.76	\$131.36	7212654 00	CApp 8980; CApp 8988-89
TCNU8192311	\$2,627.12	\$2,495.76	\$131.36	7212655 00	CApp 3489; CApp 9603-04
TEMU6969125	\$2,627.12	\$2,495.76	\$131.36	7212656 00	CApp 4430; CApp 9629-30
TCLU8955592	\$3,065.00	\$2,911.72	\$153.28	7212657 00	CApp 4432; CApp 4434-35
FSCU8375511	\$3,064.96	\$2,911.72	\$153.24	7212658 00	CApp 4438; CApp 9256-57
TCNU8169899	\$2,526.32	\$2,400.00	\$126.32	7212662 00	CApp 7106; CApp 6527; CApp 6529
TCLU1861085	\$4,947.36	\$4,700.00	\$247.36	7212663 00	CApp 4444; CApp 6611
CMAU4238265	\$4,947.37	\$4,700.00	\$247.37	7212664 00	CApp 4588; CApp 6611
TEMU6102561	\$4,947.36	\$4,700.00	\$247.36	7212665 00	CApp 6609; CApp 6611
CMAU7150347	\$4,842.11	\$4,600.00	\$242.11	7212667 00	CApp 4453-54; CApp 4456
TEMU7613592	\$4,842.11	\$500.00	\$4,342.11	7212668 00	RApp 525-26
Not on invoice	\$4,947.36	\$0.00	\$4,947.36	7212669 00	RApp 527; RApp 177
APHU7033790	\$4,315.79	\$4,100.00	\$215.79	7212671 00	CApp 4459-60
TRHU4770122	\$4,947.36	\$4,700.00	\$247.36	7212672 00	CApp 4461; CApp 6611-12
TEMU6316590	\$4,947.36	\$4,700.00	\$247.36	7212673 00	CApp 4464; CApp 6611
TCNU3223317	\$4,947.36	\$4,700.00	\$247.36	7212674 00	CApp 3975; CApp 6611
CMAU4596926	\$4,315.79	\$4,100.00	\$215.79	7212677 00	CApp 3977; CApp 3978
TGBU6325272	\$4,842.11	\$4,600.00	\$242.11	7212678 00	CApp 3978; CApp 3979-81
CMAU6902780	\$5,473.68	\$5,200.00	\$273.68	7212679 00	CApp 3982; CApp 3978; CApp 3980
CMAU7464815	\$5,473.68	\$5,200.00	\$273.68	7212680 00	CApp 3985; CApp 3978;
TCLU8537817	\$5,473.68	\$5,200.00	\$273.68	7212681 00	CApp 3988; CApp 6527; CApp 6529
BMOU5417391	\$5,473.68	\$5,200.00	\$273.68	7212682 00	CApp 3992; CApp 6527; CApp 6529
TRHU8963665	\$5,473.68	\$5,200.00	\$273.68	7212683 00	CApp 6613; CApp 6527-29
APHU7275264	\$5,473.68	\$5,200.00	\$273.68	7212684 00	CApp 5851; CApp 6527; CApp 6529
TCNU6993707	\$2,631.58	\$2,000.00	\$631.58	7212690 00	CApp 8260; CApp 6620; CApp 3400
CMAU8486552	\$631.57	\$300.00	\$331.57	7212692 00, 7212692 01	CApp 3995; CApp 5855; CApp 3431
BMOU5867969	\$2,105.26	\$2,000.00	\$105.26	7212693 00	CApp 8267; CApp 3400
AXIU1665326	\$2,105.26	\$2,000.00	\$105.26	7212694 00	CApp 6623; CApp 3400
TCNU4365430	\$2,631.58	\$2,500.00	\$131.58	7212695 00	CApp 4618; CApp 6527; CApp 6529
TLU4227724	\$2,105.26	\$2,000.00	\$105.26	7212697 00	CApp 6626; CApp 6607
CMAU4651387	\$5,473.68	\$5,200.00	\$273.68	7212749 00	CApp 4005; CApp 6527; CApp 6529
CMAU5833869	\$315.78	\$300.00	\$15.78	7212830 00	CApp 4008; CApp 3431
CMAU4489234	\$2,105.26	\$2,000.00	\$105.26	7212836 00	CApp 4015; CApp 3400
CAIU7906426	\$2,105.26	\$2,000.00	\$105.26	7212837 00	CApp 8276; RApp617
TGHU9661689	\$2,105.26	\$2,000.00	\$105.26	7212838 00	CApp 6629; CApp 3400
DFSU6656920	\$2,105.26	\$2,000.00	\$105.26	7212839 00	CApp 4021; CApp 3400
CMAU4408530	\$2,631.58	\$2,500.00	\$131.58	7212840 00	CApp 6632; CApp 6607; CApp 6634
TCNU7371858	\$2,631.58	\$2,000.00	\$631.58	7212841 00	CApp 8268; CApp 6607
CMAU5635776	\$1,578.94	\$1,500.00	\$78.94	7212842 00	CApp 4025; CApp 4026
TCLU1527289	\$1,578.94	\$1,500.00	\$78.94	7212843 00	CApp 4027; RApp 371
CAIU9243831	\$1,578.94	\$0.00	\$1,578.94	7212844 00	CApp 5693
UETU5542161	\$1,578.95	\$1,500.00	\$78.95	7212845 00	CApp 5698; RApp 1046
CMAU7115388	\$1,578.94	\$1,500.00	\$78.94	7212846 00	CApp 5702; CApp 5872
CMAU7895089	\$1,578.94	\$0.00	\$1,578.94	7212847 00	CApp 5706
TGHU6870509	\$2,105.26	\$2,000.00	\$105.26	7212848 00	CApp 5711; CApp 5103-04
TGBU4927060	\$1,578.94	\$1,500.00	\$78.94	7212850 00	CApp 5716; CApp 5107
SEGU6200704	\$2,105.26	\$2,000.00	\$105.26	7212851 00	CApp 5719; CApp 4701-02
TCKU6322710	\$2,105.26	\$2,000.00	\$105.26	7212852 00	CApp 5723; CApp 4706-07

Container Number	Demurrage Invoices to TPG	Demurrage Paid by Respondents	Markup	TPG Invoice Number	Cite
Not on invoice	\$2,105.26	\$0.00	\$2,105.26	7212854 00	CApp 5728; RApp 364
TCLU8884626	\$2,105.26	\$2,000.00	\$105.26	7212855 00	CApp 5733; CApp 4716-17
TLLU7705160	\$2,631.58	\$2,500.00	\$131.58	7212856 00	CApp 5738; CApp 4721-22; CApp 4724
TCNU5272331	\$2,105.26	\$2,000.00	\$105.26	7212857 00	CApp 5744-45; CApp 4728
CMAU6309497	\$842.10	\$0.00	\$842.10	7212862 00	CApp 6434
TGHU6332761	\$1,222.15	\$1,185.49	\$36.66	7214688 00	CApp 6125; CApp 6130
SEGU4425091	\$1,222.17	\$1,185.49	\$36.68	7214766 00	CApp 3247-48
SEGU6189441	\$1,222.15	\$1,185.49	\$36.66	7214775 00	CApp 3281; CApp 3292
TGBU9314306	\$1,222.15	\$1,185.49	\$36.66	7214777 00	CApp 6046; CApp 8416
TEMU7620550	\$1,222.15	\$1,185.49	\$36.66	7214781 00	CApp 6962; CApp 6050
CMAU6459012	\$1,634.89	\$1,585.85	\$49.04	7214935 00	CApp 3261-62
TLLU7774582	\$1,634.89	\$1,585.85	\$49.04	7214937 00	CApp 3270; RApp 1028
TCNU1568393	\$1,634.89	\$1,585.85	\$49.04	7214939 00	CApp 6148; CApp 6152
CAIU8833520	\$1,634.89	\$1,585.85	\$49.04	7214940 00	CApp 6167; RApp 1030
CAIU7116458	\$2,047.63	\$1,986.21	\$61.42	7214941 00	CApp 6056-7; RApp 1041-2
TGHU6326748	\$306.00	\$296.37	\$9.63	7214943 00	CApp 6537-38
TGBU4315697	\$1,248.42	\$1,185.48	\$62.94	7214944 00	CApp 6543; CApp 6548-49
TLLU7533902	\$1,248.00	\$1,185.48	\$62.52	7214946 00	CApp 6550; CApp 6555; CApp 6566
CMAU7571238	\$312.00	\$296.37	\$15.63	7214948 00	CApp 6556; CApp 6566
APHU6446676	\$312.00	\$296.37	\$15.63	7214949 00	CApp 6561; CApp 6566
TCNU5045580	\$1,248.42	\$1,185.48	\$62.94	7214951 00	CApp 6567; CApp 6572-73
CRSU9351044	\$1,248.42	\$1,185.48	\$62.94	7214952 00	CApp 6153; CApp 6158-59
CRSU9308921	\$1,248.00	\$1,185.49	\$62.51	7214953 00	CApp 6574; CApp 6579
18 Containers	\$59,789.47	\$56,800.00	\$2,989.47	7217739 00	CApp 6424-26
TOTAL MARKUP	\$514,478.49	\$427,256.39	\$86,722.10		